REPORTABLE (102)

LAND SINCLAIR KABOME
v
THE STATE

SUPREME COURT OF ZIMBABWE
GUVAVA JA, MAKONI JA & CHATUKUTA JA
BULAWAYO: 24 JULY 2025

T. Zhuwarara, for the appellant

V. Moyo with *S. Phiri,* for the respondent

MAKONI JA:

[1] This is an appeal against the whole judgment of the High Court, sitting as an appellate court at Bulawayo ("the court *a quo*"), in which it upheld the Magistrates Court's judgment convicting the appellant of two counts of rape as defined in s 65(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the Criminal Law Code"). The appellant was sentenced to 15 years imprisonment. As in the court *a quo*, the appeal is against conviction only.

[2] After hearing submissions from counsel, the court was of the firm view that the appeal had no merit. It dismissed the appeal and indicated that reasons for this decision would be availed. I set out hereunder the reasons thereof.

BACKGROUND FACTS

[3] The appellant was aged 21 and was a form 5 boarding student at Binga High School at the time when the offence was committed. The complainant was aged 13 and a boarding student doing form one at the same school.

The appellant was charged with two counts of rape as defined in s 65(1) of the Criminal Law Code. The allegations against him were that on 8 May 2023 at around 0720 hours, the complainant met the appellant who proposed love to her. She rejected the proposal. Later that same morning, between 1100 hours and midday, the complainant, went to the school garden for a lesson in agriculture. She did not finish her assignment in time and was directed that she completes her work whilst the others went for assembly. She left the garden when the others had dispersed from assembly around 1300 hours. She headed to the classroom to collect her satchel. When she arrived, she again met the appellant. Once again, he proposed love to her but she rebuffed him. When the complainant was going out of her classroom the appellant then grabbed her and started fondling her breasts. He took the complainant's satchel to his classroom where he threw it into a far corner of the room. The complainant followed him and when she attempted to pick up the satchel, the appellant grabbed her and moved to remove her skirt and pants. The complainant tried to resist but the appellant pulled out a knife and threatened to stab her. He removed her skirt and pant. He then inserted his erect penis into her vagina and had sexual intercourse with her twice without her consent. She made unsuccessful attempts to report the matter to the school matron. She finally confided in her friend, who was a day scholar, and asked her to bring her phone the following day so that she could tell her mother what had happened. She then made a report to her mother the next day using her friend's phone. Her mother then contacted the school matron leading to the matter being reported to the police.

PROCEEDINGS BEFORE THE TRIAL COURT

[4] In his defence outline, the appellant pleaded not guilty to the charge. He denied proposing love and raping the complainant. He stated that during the time he was alleged to have proposed love to the complainant, he was in class as per the school timetable. He also

stated that on the day in question, 8 May 2023, he left the school premises before lunch and as such he could not have met the complainant during lunchtime.

[5] The State led evidence from the complainant, her mother and the school matron.

[6] The complainant testified that she met the appellant on her way to her classroom from the dormitory. The appellant proposed love to her, and she turned him down. On the same day at around 1100 hours, the complainant went to the school garden to attend an agriculture lesson. She failed to finish her assignment with the others and remained behind whilst others went for assembly. She left the garden when others had dispersed from assembly.

[7] At around 1300 hours, she went to her classroom to collect her satchel and met the appellant. The appellant again proposed love to her and she turned him down. She entered the classroom to take her satchel and as she was about to leave, the appellant stood at the door blocking her. He then grabbed her and started fondling her breasts. She tried to block him using her satchel, but the appellant snatched it and took it to his classroom. He then informed her that if she wanted her satchel, she had to take it from his classroom and she followed him. The appellant threw the satchel to the corner of the classroom. When the complainant tried to take it, he grabbed and pushed her against some tables. He removed her skirt and pants and when resisted, the appellant drew out a knife and threatened to stab her. The appellant proceeded to have sexual intercourse with her. When she screamed from the pain the appellant withdrew his penis and again threatened her with the knife. He then inserted his penis the second time without her consent. He heard the voices of people who were passing by and stopped raping her. He pulled up the zip of his trousers, and instructed the complainant to dress up. He threatened her not to report the matter to anyone otherwise he would kill her. The complainant told him that she was going

to report the rape. He responded that he was not afraid of anyone as his father was the District Administrator and they had money to engage a lawyer to defend him.

[8] The complainant tried to report the rape to the school matron, Brenda Siyasweka, at the dining hall. The matron, who was with a Mr. Ncube, waved her away indicating that she was very busy. She promised to follow her to the hostel. However, she did not do so. In the morning of the following day, the complainant once again reminded the matron about the issue and still the matron did not attend to her. The complainant proceeded to confide in her friend, who was a day scholar, and asked her to bring her phone the following day so that she could call her mother.

[9] On 10 May 2023, at around 0700 hours, the complainant called her mother, Potani Nyoni, and reported the rape to her. The mother immediately notified the matron of the matter through a phone call. On 11 May 2023, the complainant's mother visited the school and found that the matron and senior teacher, Sibonisiwe Nyathi, had already taken the complainant to Binga Hospital for a medical examination. Her mother then reported the matter to the police resulting in the appellant's arrest.

[10] The complainant was then taken to the department of social welfare for counseling. She was also taken to St Patrick's hospital for a pregnancy test which came out positive and an HIV test which came out negative. She testified that another pregnancy test was done later and it came out negative. She then went back to school to finish off the term after two weeks.

[11] The complainant's mother corroborated the testimony of the complainant in her evidence in chief and during cross examination. She testified that the appellant's mother admitted that the appellant had committed the crime, offered to compensate her but she rejected the

offer. It seemed to her that the senior teacher and the headmaster also wanted to cover up the crime.

[12] The matron, Brenda Siyasweka, testified that the complainant never approached her on the day in question. She only got to know of the offence through the complainant's mother. She testified that after the complainant's mother had informed her of the incident, she took the complainant to the senior teacher who then called her class teacher. The complainant narrated to them what had transpired. She also testified that she had encountered the complainant twice on the day of the alleged offence. The first time was during lunch at the dining hall and the second time was also at the same place during supper but she did not show any signs of distress. With that evidence the State closed its case.

[13] In his defence, the appellant testified that on 8 May 2023, he neither met the complainant nor proposed love to her. He testified that on the day the incident was alleged to have taken place he had gone home before lunchtime. He testified that he was not aware that his mother had offered to compensate the complainant's parents.

FINDINGS OF THE TRIAL COURT

[14] The trial court held that the complainant was a credible witness who had narrated the incident well and had no reason to falsely incriminate the appellant. In dealing with the issue of the admissibility of the sexual complaint, the trial court held that given the circumstances of the matter, the report of rape was made timeously and voluntarily. It further found that the evidence of the complainant placed the appellant at the scene of the crime. Regarding the evidence of the matron, the trial court reasoned that the matron had all the reasons to lie against the complainant to protect not only her job but the reputation of the school. It further held that the matron was not a credible witness and her evidence

could not be relied on. As a result, the appellant was found guilty as charged and sentenced as already set out above.

THE APPEAL BEFORE THE COURT *A QUO*

[15] Aggrieved by that finding, the appellant filed an appeal in the court *a quo* in which he raised nine grounds of appeal. At p 8 para 20 of its judgment, it observed as follows:

> "At the end of it all, we read the grounds of appeal to raise the issues whether or not;
> a. the state's evidence proved the crime of rape.
> b. the court *a quo* was entitled to find the evidence of the complainant as credible.
> c. the sexual complaint was admissible.
> d. the court *a quo* erred is rejecting the evidence of Brenda Siyasweka**,** the school Matron and;
> e. the court *a quo* considered the appellant's *alibi* defence."

[16] The court *a quo* held that the trial court was correct in its finding that a rape had been committed. The medical report confirmed that the complainant had been penetrated. After analyzing the complainant's evidence, it also confirmed the trial court's finding that the complainant was a credible witness. It further found that the sexual complaint had been made timeously. In the court *a quo*'s view, the two days within which she finally made the report to her mother could not be said to be unreasonable in the circumstances considering that her mother was not readily available and that the other person whom she could confide in was hostile. It further held that the fact that the matron did not readily avail herself to allow the complainant to make the report could not be held against the complainant.

[17] Regarding the evidence of the school matron, the court *a quo* held that the reasons given by the trial court for rejecting her evidence were cogent. It opined that the school had unsuccessfully tried to sweep the issue under the carpet by *inter alia* suggesting that the

case be resolved without the involvement of the police. It concluded that the evidence of the matron was concocted and was intended to hide the school's malfeasance.

[18] The court *a quo* dismissed the appellant's defence of an *alibi* on the basis that he had failed to lay a proper foundation for it. It found that appellant failed to establish where he was during the time when the offence occurred as he had accepted that he had been at school on the day in question. The court noted that the police could not have investigated the truthfulness of the *alibi* as the appellant failed to mention where exactly he was at the time when the offence occurred. The court further noted that the appellant was in boarding school and there was no evidence that he was given authority to leave the school when even the complainant, in the state that she was, required a pass to leave the school. The court noted that this was a requirement of the school and as such, the appellant could not leave the school without authority. The court *a quo* therefore found that there was no *alibi* to talk of.

[19] The court *a quo* held that the respondent had managed to prove its case beyond a reasonable doubt before the trial court and accordingly dismissed the appeal for lack of merit.

THE APPEAL BEFORE THIS COURT

Aggrieved, the appellant filed the present appeal based on six grounds of appeal.

[20] At the hearing of the appeal, the appellant abandoned grounds 2, 4, 5 and 6 leaving grounds 1 and 3 for determination. They read as follows:

> "(1) The court *a quo* seriously misdirected itself on the law by dismissing appellant's *alibi* defence.
>
> (3) The court *a quo* erred at law by disregarding the matron's evidence led on behalf of the State."

SUBMISSIONS BEFORE THIS COURT

Appellant's Submissions

[21] With respect to the first ground of appeal, Mr *Zhuwarara* contended that the court *a quo* erred by upholding the trial court's dismissal of his defence of an *alibi*. He submitted that the appellant had, from inception raised the defence of an *alibi* in his defence outline. It was that he was at home at the time the complainant alleged that she was raped. He submitted that before the trial court, no warned and cautioned statement was tendered and what the appellant told the police upon his arrest was never raised by the respondent at trial. He further contended that as the State did not cross-examine the appellant on his defence of an *alibi* therefore his defence was not put in issue. The trial court did not address the issue of the *alibi*. He contended that the defence of *alibi* was corroborated by the matron's evidence which was to the effect that the complainant was at the dining hall when the alleged offence is said to have taken place.

[22] Regarding the matron's evidence, Mr *Zhuwarara* submitted that the court erred in finding that the trial court correctly rejected the matron's evidence which corroborated the appellant's evidence that the complainant was at the dining hall at lunchtime. That evidence remained unchallenged as the State did not impeach her nor did the trial court clarify issues with her. In any event the State had conceded that the trial court erred by disregarding the matron's testimony.

Respondent's Submissions

[23] On the other hand, whilst Mr *Moyo* conceded that the respondent failed to ensure an investigation of the *alibi* was carried out and to produce the appellant's warned and cautioned statement he still persisted that it proved its case beyond a reasonable doubt. He relied mainly on the findings of credibility made in respect of the evidence of the

complainant by the court *a quo*. He further submitted that the court *a quo* gave cogent reasons for rejecting the evidence of the matron

ISSUES FOR DETERMINATION

[24] Two issues arise for determination from the remaining two grounds of appeal and the submissions made by counsel before this Court. These are:

i. Whether or not the court *a quo* erred by dismissing the appellant's defence of an *alibi*.

ii. Whether or not the court *a quo* erred by finding that the matron was not a credible witness.

THE LAW

[25] The defence of an *alibi* is a statement of defence to the effect that a person accused of a crime was at a specific place different from the crime scene at the time the crime was being committed. See *Matanga* v *The State* SC 17/15 at p 6.

[26] In *Kereke* v *Maramwidze & Ors* SC 53/24 at paras 63-64 the Court took occasion to discuss the application of the defence of an *alibi* in our jurisdiction. The Court noted the following:

> "The treatment of an *alibi* is settled in this jurisdiction. The manner in which courts must approach the defence of *alibi* has been set out in several decisions of this Court and the High Court. Some of the relevant cases, are *Mushanawani* v *S, supra* at pp 12 and 17, *S* v *Musakwa*, *supra* at p. 2F-H and *S* v *Mutandi, supra, S* v *Manuwa*, HH 47/12 and *S* v *Masawi*, 1996 (2) ZLR 472. The principle that **emerges from these cases is that the prosecution bears the onus to disprove beyond a reasonable doubt the veracity of the defence of an *alibi*.** On the other hand, **an accused person who raises such a defence has an evidentiary burden to prove on a balance of probabilities that it is reasonably possibly true.** The **defence should be raised at the earliest possible opportunity after an accused person becomes aware that he is under investigation, preferably before he proffers his defence outline in court**. This is because the police must be afforded an opportunity to investigate it. **Where the defence is raised in the defence outline or at trial, the evidentiary burden to establish it on a balance of probabilities falls on the accused person**. **However, in terms of s 18 (4) of the Criminal Law Code, the prosecution retains the overall onus of establishing beyond a reasonable doubt that the *alibi* is false.**" (Emphasis added)

[27] In *R* v *Hlongwane* 1959 (3) SA 337(AD) 341D – B the court made the point that:

> "The correct approach is to consider the *alibi* in the light of the totality of the evidence in the case, and the Court's impressions of the witnesses."

[28] As far back as 1995, and beyond, when *S* v *Musakwa* 1995(1) ZLR 1 (S) at p 3 D-E was handed down this Court has painstakingly laid down the law regarding the defence of an *alibi*. What I can contribute is that where such a defence is raised a prosecutor cannot prepare a State Outline or present the State case without having regard to the case law on this defence. The same applies to the magistracy. One cannot preside over a matter where the defence is raised without familiarising oneself with the relevant law. It must reflect in the presentation of the State case and in the judgment that the prosecutor and the magistrate were conscious that they were dealing with the defence of an *alibi*.

ANALYSIS

Whether or not the court *a quo* erred by dismissing the appellant's defence of an *alibi*.

[29] Mr *Zhuwarara*, for the appellant, argued that the court *a quo* erred in dismissing the appellant's defence of an *alibi* because the State failed to rebut the defence. It did not produce the appellant's warned and cautioned statement to establish when he first raised the defence. He further submitted that the testimony of the matron corroborated the appellant's defence when she testified that the complainant went for lunch and that she did not show any signs of discomfort. That was indicative of the fact that she could not have been raped during the lunch break.

[30] It was one of the appellant's concerns that the trial court never mentioned the word '*alibi*' in its entire judgement. The word might not have been mentioned but a reading of the judgment shows that the trial magistrate was conscious that he was dealing with the

defence of an *alibi*. The trial court found that there was evidence that the appellant was at school at the time when the rape occurred. It reasoned thus:

> "While the accused maintained that he was not at school the evidence before the court shows that he was present when he sexually assaulted the complainant. The complainant had no reason to pick on him."

[31] On appeal, the court *a quo,* per MUTEVEDZI J in a well-reasoned and laid out judgment, was very clear that it was dealing with the defence of an *alibi*. It started by setting out the relevant law and then proceeded to apply it to the facts. It then concluded as follows:

> "In the instant case, the court *a quo* found that the appellant maintained his evidence that he was not at school at the time the offence was alleged to have occurred. What is unclear is whether or not the appellant raised an *alibi* which must have been investigated. Much as an accused person is not expected to prove his *alibi*, it remains incumbent on him to lay a proper foundation for that *alibi*. *In casu*, the appellant accepts that he was at the school that day, but alleges that he left before lunch. He does not state where he went yet for an *alibi* to stick, an accused must tell the police where he was so that they can investigate the veracity of such claim. The police cannot investigate an accused's presence 'in the whole world.' It must be confined to a particular place mentioned by the accused himself. The court *a quo* said it was not convinced that the appellant had left school before lunch like he alleged. The appellant was in boarding school. There is no evidence that the school gave him authority to leave the school. That the complainant even in the circumstances she was in was required to get a pass to leave school shows that it was a requirement. Without saying where he was, and with all the evidence staked against his claim of not having been at school, there was no *alibi* to talk about. There was nothing for the police to investigate in that regard. So, the contention that his *alibi* was not investigated is baseless."

[32] A reading of the record reveals that the appellant, in his defence outline, raised the defence that he was not present at the school premises during lunch hour when the rape occurred. The defence outline, which was generally terse, stated the following regarding the defence;

> "5. The accused left school before lunch on the 8th of May 2023 so it is false that he met the complainant during the lunch hour."

The appellant did not state where he went after leaving school. He did not indicate that he had advised the police, at the earliest opportunity, in his warned and cautioned statement where he was at the relevant time. The appellant only mentioned before the trial court, for

the first time in his evidence in chief, that he was home at the relevant time. He did not tell the trial court that he stated so in his warned and cautioned statement. The issue was not even raised in the application for discharge at the close of the State case when he was arguing that the State had not established a *prima facie* case against him

[33] No meaningful submissions were made by the appellant on his defence of an *alibi* in the court *a quo*. The following paragraph is all that the appellant had to say regarding the defence;

> "8. **The court *a quo* erred grossly by not taking into account the fact that the appellant's defence was not disproved by the state.** Appellant's defence was that of an *alibi*. The state therefore had to disprove appellant's defence beyond doubt. In ***S* v *Mutandi* 1996 (1) ZRI 367 (H)** this Honourable Court ruled that, **'There *is no onus* on the accused to prove his *alibi*; if on all the evidence there is a reasonable possibility that the *alibi* evidence is true, there must be the same possibility that he did not commit the crime, and the accused is entitled to be acquitted.'** The court *a quo* should have upheld the defence of *alibi* because one of the state witnesses Brenda Siyasweka exonerated appellant in fact she corroborated appellant's defence by stating that complainant was at the dining hall having lunch at the time complainant alleges she was raped by the appellant. The appellant would not have raped the complainant who was having lunch at the dining hall." (*sic)*

The appellant's submissions were in no way related to his defence of an *alibi*. There are no specific details provided regarding his whereabouts at the time the offence was committed. It therefore means that both the trial court and the court *a quo* did not misdirect themselves as the appellant did not lay a basis upon which the courts could find in his favour.

[34] It can be noted that the argument about the absence of the warned and cautioned statement came as an afterthought. It is raised for the first time on appeal before this Court. And it seems it was raised to muddle the waters. I suppose it's a point of law and can be raised at any time but an accused person who raises such a defence has an evidentiary burden to prove on a balance of probabilities that it is reasonably possibly true. Such a defence

should be raised at the earliest possible opportunity after an accused person becomes aware that he is under investigation, preferably before he proffers his defence outline in court. Does this burden not include establishing that the accused raised the defence at the earliest possible opportunity when his warned and cautioned statement was recorded? *In cas*u the appellant does not come anywhere near discharging the evidentiary burden cast upon him by law. He made bold assertions not supported by evidence.

[35] This is one of those cases where the State does not produce the appellant's warned and cautioned statement for the court to determine whether the defence was made timeously or it was being raised for the first time in the defence outline. This might be an instance where the prosecutor went into court ill- prepared. Neither did the appellant produce the warned and cautioned statement to show that he raised the defence as soon as he became aware that he was being investigated by the police. However as was stated in *Hlongwane, supra* the defence is considered in the light of the totality of the evidence led and the Court's impressions of the witnesses. I would add that the findings of credibility made by a court dealing with such a matter, where the defence of an *alibi* is raised, are crucial. What it means is that if the witnesses' evidence is regarded as credible, and it places an accused at the scene of a crime, the defence would have been disproved. This applies in instances where the police would not have investigated the defence, for whatever reason, as in this case where it is not clear when the appellant first raised the defence. *In casu* the trial court found the complainant to be a credible witness. The findings were confirmed by the court *a quo* and they are not being challenged before this Court.

[36] It is of significance that the appellant did not attack the findings of credibility by the trial court, which findings were confirmed by the court *a quo*. The complainant placed the appellant at the school premises on the day and time when the rape was committed. In any

event as was observed by the court *a quo* the appellant was a boarder who would require a pass to leave the school premises which pass, he did not produce or allude to. The appellant's defence was therefore disproved beyond a reasonable doubt. The findings of the court a *quo* are unassailable in this regard. The totality of the evidence showed that the appellant was at the school at the relevant time and committed the offence.

[37] The court *a quo* was therefore correct in dismissing the defence of an *alibi* and there is no basis for interfering with such finding.

Whether or not the court *a quo* erred by finding that the matron was not a credible witness.

[38] In raising this issue, the appellant argues that the court *a quo* erred in disregarding the matron's evidence. Mr *Zhuwarara* argued that the court *a quo* did not look at the evidence of the matron objectively in arriving at the finding that she was not a credible witness. He further argued that the matron corroborated the appellant's testimony by testifying that the complainant was at the dining hall at the time the incident was alleged to have taken place. I must observe that from the submissions by Mr *Zhuwarara*, the appellant's grievance is not that the court *a quo* disregarded the matron's evidence, as stated in the ground of appeal, but rather that the court considered the evidence but wrongly rejected it.

[39] The matron's testimony was full of material inconsistencies one of which was whether she had seen the complainant on the day in question. During the examination in chief, she initially testified that she had not come across the complaint at all and that she had only received a call from the complainant's mother who advised her that the complainant was having problems with the appellant. To quote her she said "There is nowhere were I came across the complainant." (*sic*) She then went on to narrate how she took the complainant

to her Senior teacher and whatever else she did after receiving the call from the complainant's mother. Later on, she was asked the following by State counsel:

> "Q. Anything else?
> A. No
> Q. When is it that she was raped?
> A. 8th of May
> Q. Where were you on 8 May?
> A. I was at work
> Q. Can you tell the court your encounter with the complainant on 8 May?
> A. She came to the dining hall for lunch. There were no signs on her to suggest that anything had happened to her neither did she report that something happened to her. At supper time I had the complainant and the rest of the pupils but she did not tell me anything. When I took some materials from there but she did not to me anything." (*sic*)

[40] During cross examination she maintained the second version of her story that the complainant had come for lunch in the dining hall and she did not, at any time, approach her to tell her about the rape incident.

[41] The court *a quo,* in a meticulous scrutiny of the judgment of the trial court, confirmed its finding that the matron was not a credible witness and described her testimony as "pathetic". It observed as follows:

> "The trial court went on to criticize the matron's assertion that she had been with the complainant both at lunch and at supper on the fateful day. It observed that if that were true, the fastidiousness with which she had approached the complainant's issues smacked of a cover up. She had no reason to pay special attention to the complainant on that day to the exclusion of so many other girls in the school. She had not given any reason why she had been particularly interested in the complainant more than the others. The only reason she could have singled her out would have been if she had listened to her report. That would have been special. The court further said the matron had clearly performed her responsibilities negligently and had failed in her duties. She was expected to protect the girls at the school, yet she had deliberately rebuffed the young girl on a couple of occasions when she wanted help. She therefore had a motive to fabricate her evidence."

[42] In any event, the evidence of the complainant, regarding the approaches to the matron, was found to be credible and there is no attack challenging that finding. That evidence was corroborated by her mother and the narration relating to the involvement of the

complainant's friend who had to bring her a phone from home. It would defy logic to believe the version of events as stated by the matron as the complainant had to go to the extreme of telling her friend her ordeal and requesting the friend, who was a day scholar, to bring her a phone from home so that she could call her mother. It was only after the girls managed to communicate with the complainant's mother that the matter came to light. The finding by the court *a quo* that the evidence of the matron, by all measure, was not credible cannot be faulted. I note, in passing, that it is baffling why the State did not call the complainant's friend as a witness as she received the initial report.

DISPOSITION

[43] The court *a quo* correctly dismissed the appellant's appeal. There was no legal basis for interfering with the trial court's judgment convicting the appellant. His defence of an *alibi* was successfully disproved. Both courts were correct in rejecting the matron's evidence as not being credible. The appeal was therefore devoid of merit and could not succeed.

[44] It was for the above reasons that the Court dismissed the appeal.

GUVAVA JA : I agree

CHATUKUTA JA : I agree

Mvhiringi & Associates, appellant's legal practitioners

National Prosecuting Authority, respondent's legal practitioners